2023 Y L R 1826

[Supreme Court (AJ&K)]

Before Kh. Muhammad Nasim and Raza Ali Khan, JJ

MUHAMMAD AKRAM---Appellant

Versus

TASMIA HANIF and others---Respondents

Civil Appeals Nos. 30 and 38 of 2022, decided on 31st March, 2023.

(On appeal from the judgment of the Shariat Appellate Bench of the High Court dated 18.03.2022 in Family Appeals Nos. 90 and 91 of 2020).

Azad Jammu and Kashmir Family Courts Act, 1993 (XI of 1994)---

----S. 5 & Sched.---Suit for recovery of maintenance and dowry articles---Scope---Appellant assailed the judgments and decrees passed by courts below in suit for recovery of maintenance and dowry articles--- Validity--- Respondent in support of her version had produced before the court two witnesses and also got recorded her statement as witness and in documentary evidence she had produced divorce-deed, receipts of the school fee as well as the stationary and also the receipts of the dowry articles, whereas, in rebuttal the appellant got recorded the statement of his attorney---Respondent had successfully proved the cruel attitude of the appellant, non-providing of the maintenance allowance and the fact that the dowry articles were in possession of the appellant, whereas, to rebut the version of the respondent no solid evidence had been brought on record by the appellant---Concurrent findings recorded by the courts below were based on proper appreciation of the evidence available on record and under law such findings could not be disturbed by the Supreme Court in second appeal---Appeals were dismissed.

Muhammad Muneer and another v. Naveeda Khalid 2019 SCR 394 and Muhammad Farooq v. Beenish and another 2021 SCR 221 ref.

Babar Ali Khan, Advocate for Appellant (in Criminal Appeals Nos. 30 and 38 of 2022).

Sardar Hamid Raza, Advocate for Respondents (in Criminal Appeals Nos.30 and 38 of 2022).

Date of hearing: 20th March, 2023.

JUDGMENT

KH. MUHAMMD NASIM, J.---Both the captioned appeals, by leave of the Court, have arisen out of the common judgment of the Shariat Appellate Bench of the High Court (High Court) and involve identical legal and factual propositions, hence the same are being disposed of through this consolidated judgment.

2. The brief facts of the case are that the plaintiff-respondents filed two suits; one for grant of maintenance allowance and the other for recovery of dowry articles, before the Family Judge, Bhimber. At the conclusion of the proceedings,

the learned trial Court decreed the suit filed for grant of maintenance allowance in the terms that the plaintiff respondent No.1, herein, is entitled to the maintenance allowance at rate of Rs.5000/-per month from the date of desertion 26.12.2018 to the date of divorce i.e. 31.10.2019. The minors are entitled to the maintenance allowance at the rate of Rs.5000/- each per month from 26.12.2018 to the date of judgment and in future at the rate of Rs.8000/- each per month till attaining the age of puberty with 10% annual increase. The plaintiff-respondent No.1, herein, was also declared entitled to get maintenance allowance of iddat period at the rate of Rs.5000/- per month total amounting to Rs.15000/-. The suit for recovery of dowry articles was also decreed in favour of the plaintiff vide consolidated judgment and decrees dated 29.09.2020. Feeling aggrieved from the aforesaid judgment and decrees of the trial Court, the respondent, herein, filed two separate appeals before the High Court on 12.10.2020. The learned High Court after hearing the parties dismissed the appeals filed by the respondent, herein, vide impugned consolidated judgment and decrees dated 18.03.2022, which is the subject matter of the captioned appeals.

3. Mr. Babar Ali Khan, Advocate, the learned counsel for the appellant argued that the impugned judgment is against law and the facts of the case. He contended that the Courts below failed to appreciate the fact that the wife willfully left the house of the husband, therefore, she was not entitled for any maintenance allowance. He further added that the Courts below also did not consider the financial condition of the appellant while fixing the maintenance allowance. The concurrent findings recorded by the Courts below are based on misreading and non-rearing of evidence, hence, interference by this Court is warranted under law.

4. On the other hand, Sardar Hamid Raza, Advocate, the learned counsel for the respondents filed written arguments stating therein that the impugned judgment is perfectly legal. The respondent left the house of the husband due to maltreatment and this fact is proved from the evidence brought on record by the respondent, moreover, the appellant is duty bound to provide the maintenance allowance to his children and the trial Curt while fixing the maintenance allowance has already taken the lenient view. He lastly submitted that the concurrent findings of facts recorded by the Courts below are based on proper appreciation of the material available on record, hence, interference by this Court in view of the settled principle of law is not warranted.

5. In the light of the arguments, we examined the record made available along with the impugned judgment. The perusal of the record shows that the respondent in support of her version produced before the Court two witnesses and also got record her statement as witness and in documentary evidence she produced divorce-deed, receipts of the school fee as well as the stationery and also the receipts of the dowry articles, whereas, in rebuttal the appellant, herein, got recorded the statement of his attorney. From the perusal of the evidence available on record it postulates that the respondent succeeded to prove the cruel attitude of the appellant, non-providing of the maintenance allowance and the fact that the dowry article are in possession of the appellant, whereas, to rebut the version of the respondent no solid evidence has been brought on record by the appellant. In such state of affairs, we are satisfied that the trial Court rightly decreed the suits in favour of the

respondent. So far as the fixation of maintenance allowance is concerned, under law, a father is bound to maintain his children and in the instant case admittedly, the minors are studying in the school and in the present era in view of the inflation and the constant increase in the prices of daily household items as we as the expenses incurred upon the education, we do not intend to decrease the amount of maintenance allowance fixed by the trial Court. The concurrent findings recorded by the Courts below are based on proper appreciation of the evidence available on record and under law such findings cannot be disturbed by this Court in second appeal. For instance, reference may be made to the cases reported as Muhammad Muneer and another v. Naveeda Khalid [2019 SCR 394] and Muhammad Farooq v. Beenish another [2021 SCR 221].

For the forgoing reasons, these appeals having no substance are hereby dismissed with no order as to costs.

SA/8/SC(AJ&K) Appeals dismissed.

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